

GREENROOT v WEBSTER, et al

25CV48032

DEFENDANT WEBSTER'S DEMURRER, MOTION TO STRIKE, and MOTIONS TO COMPEL

This case involves a contract dispute concerning real property brought by Lorna Greenroot ("Plaintiff") against Penelope Webster ("Penelope"), Randy Webster ("Randy") (collectively "Websters") and Gregory Stanley ("Stanley.") Now before the Court are a demurrer and motion to strike brought by the Websters, as well as motions to compel discovery responses.

The demurrer and motion to strike appear to be based on the Third Amended Complaint which was attached as an exhibit to the Plaintiff's motion for leave to file an amended complaint ("Exhibit TAC.") The Exhibit TAC does not match the TAC filed by the Plaintiff, because while it contains the same causes of action, the filed TAC lacks all factual allegations set forth in the Exhibit TAC. In the interests of judicial economy, the Court will consider the substantive merits of the demurrer and motion to strike as to the Exhibit TAC. (For the remainder of this ruling, "TAC" will be used to refer to the Exhibit TAC.)

Plaintiff did not file any opposition to the motions.

I. Background

Plaintiff filed her original complaint on April 30, 2025, against Webster, alleging causes of action for: 1) quiet title, 2) breach of contract, and 3) unjust enrichment. Before Defendant filed an Answer, Plaintiff filed a First Amended Complaint ("FAC") against Webster which removed the cause of action for unjust enrichment.

On May 20, 2025, Webster filed a Cross-Complaint for 1) breach of lease agreement, 2) breach of lease to own agreement, 3) declaratory relief, 4) slander of title, 5) elder abuse, and 6) ejectment.

On May 22, 2025, Plaintiff sought leave to file a Second Amended Complaint against Webster in order to clarify her own theories of relief and rebut Webster's allegations in the cross-complaint. Webster had offered to stipulate to this amendment but Plaintiff did not respond to such stipulation. (Defendant's notice of non-opposition.)

This motion was denied as moot because on May 30, 2025, Plaintiff filed a motion for leave to file her TAC. On July 11, 2025, the Court granted Plaintiff's motion to amend. The TAC adds Randy Webster as a new defendant as well as to add causes of action for fraud, conspiracy, of title, and intentional infliction of emotional distress.

II. Legal Standard

A. Demurrer

"A demurrer tests the sufficiency of a complaint and admits all facts properly pleaded." (*Setliff v. E.I. Du Pont de Nemours & Co.* (1995) 32 Cal. App. 4th 1525, 1533.) The court assumes the truth of the allegations asserted but does not assume the truth of "contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal. App. 4th 242, 247.) The court can further look at those facts that "reasonably can be inferred from those expressly pleaded, and matters of which judicial notice has been taken." (*Fremont Indemnity Co.*, 148 Cal. App. 4th 100, 111.) In considering the demurrer, the court must accept the allegations set forth in the complaint as true. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.)

"A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616 (citations omitted).) Such a demurrer should be "granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 292 (citations omitted).) Finally, "it is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379.

B. Motion to Strike

A motion to strike lies either to strike: (1) any "irrelevant, false or improper matter inserted in any pleading"; or (2) any pleading or part thereof "not drawn or filed in conformity with the laws of this state, a court rule or order of court." (CCP § 436.) A

motion to strike may also be used to strike allegations related to an improper request for relief. (*Saberi v. Bakhtiari* (1985) 169 Cal.App.3d 509, 517.) A motion to strike can be used to attack the entire pleading, or any part thereof—i.e., even single words or phrases. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 40.)

When bringing a motion to strike, the moving party is obligated to attempt to meet and confer with the opposing side prior to bringing the motion. (Code Civ. Proc. § 435.5(a)(1).) The moving party must also file a declaration setting forth their attempts at meet and confer. (*Id.* sub (a)(3).) However, the failure to do so is not grounds for granting or denying the motion. (*Id.* sub (a)(4).)

III. Discussion

A. Demurrer

1. Quiet Title

The elements of an action to quiet title are: 1) the plaintiff is the owner and in possession of the land and 2) the defendant claims an interest therein adverse to the plaintiff. (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 740.) Code of Civil Procedure section 761.020 requires that a verified complaint to quiet title include: (1) a description of the subject property; (2) the plaintiff's title and basis for it; (3) the adverse claims to plaintiff's title; (4) the date as of which determination is sought; and (5) a prayer for the determination of title against the adverse claims. (Code Civ. Proc., § 761.020.)

The TAC is not artfully drafted, but it is not so incomprehensible as to be uncertain. However, a full reading of the verified TAC shows that Plaintiff has not set forth sufficient allegations to state a claim for quiet title. Specifically, while Plaintiff alleges that she is the real title holder of the Property (identified by address and legal description) and alleges that there are claims made against the Property by Defendants, Plaintiff does not allege the “date as of which determination is sought.” As such, Plaintiff has not set forth the allegations required in a verified complaint to quiet title.¹

¹ Defendants take issue with the fact that Plaintiff's TAC alleges full ownership of the Property but her previous verified complaints only alleged 50% ownership. While this may be true, a plaintiff is allowed to seek quiet title to only a portion of a property. (*Gonzales v. Gonzales* (1968) 267 Cal.App.2d 428.)

Accordingly, Defendants' demurrer as to quiet title is **SUSTAINED**, with 15 calendar days leave to amend.

2. Breach of Contract

A breach of contract claim requires: 1) the existence of a contract, 2) plaintiff's performance or excuse for nonperformance, 3) defendant's breach, and 4) the resulting damages to the plaintiff. (*San Mateo Union High Sch. Dist. v. Cnty. of San Mateo*, (2013) 213 Cal. App. 4th 418, 439.)

Plaintiff alleges that Plaintiff and Defendant(s) entered into a lease-to-own agreement, that she fully performed, and that Defendants breached the agreement by failing to transfer title to Plaintiff. However, Plaintiff does not expressly allege that she was damaged or how she was damaged. Thus she fails to state a claim for breach of contract.

Accordingly, the demurrer as to the cause of action for breach of contract is **SUSTAINED**, with 15 calendar days leave to amend. (*See also* Code Civ. Proc. §430.10(g) [a demurrer may be sustained where it is unclear from the pleading whether the contract is alleged to be written, oral, or implied by conduct].)

3. Fraud

The elements that must be plead to state a cause of action for fraud are (1) a misrepresentation as to a material fact, (2) knowledge of falsity, (3) intent to defraud, (4) justifiable reliance, and (5) resulting damage. (*Aspiras v. Wells Fargo Bank* (2013) 219 Cal.App.4th 948, 957.) "Fraud must be pleaded with particularity. General and conclusory allegations are inadequate." (*Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 903.)

The TAC states:

Defendants made false representations with intent to deceive Plaintiff into continuing to pay money and include Stanley in title under coercion. Plaintiff relied on those representations and suffered damages exceeding \$300,000. Defendants acted with malice, fraud, and oppression.

Plaintiff fails to state a single factual allegation related to the alleged fraud, let alone to do so with sufficient particularity. It does not state who made the statement, nor the content of any supposed misrepresentations or statements. (*Laukhart*, supra at 904.)

Accordingly, the demurrer as to the cause of action for fraud is **SUSTAINED**, with 15 calendar days leave to amend.

4. Collusion/Conspiracy

The essential elements of a claim for civil conspiracy are (1) the formation and operation conspiracy, (2) wrongful conduct in furtherance of the conspiracy, and (3) damages. (*AREI II Cases*, 216 Cal.App.4th 1004, 1022.) Further, the complaint “ ‘must show that each member of the conspiracy acted in concert and came to a mutual understanding to accomplish a common and unlawful plan, and that one or more of them committed an overt act to further it.’ [citation].” (*Ibid.*)

The TAC states: “Defendants conspired to deprive Plaintiff of her interest in the Property and to effect a fraudulent transfer to Stanley.”

As with fraud, conspiracy claims must be pled with particularity. (*AREI II Cases*, supra at 1022.) Bare allegations are insufficient.

Here, the TAC is utterly devoid of sufficient factual allegations of the elements of a conspiracy claim. Accordingly, the demurrer is **SUSTAINED** as to the conspiracy/collusion claims, with 15 calendar days leave to amend.

5. Unjust Enrichment (Fifth Cause of Action) and Restitution (Seventh Cause of Action)

“The elements of an unjust enrichment claim are ‘the receipt of a benefit and [the] unjust retention of the benefit at the expense of another.’” (*Peterson v. Cellco Partnership* (2008) 164 Cal.App.4th 1583, 1593 [citation omitted].) However, the mere fact that a person benefits another does not necessarily support a claim for unjust enrichment. (*Ibid.*) Unjust enrichment and restitution are essentially the same thing, and there is no independent cause of action for restitution. (*Munoz v. MacMillan* (2011) 195 Cal.App.4th 548, 661.)²

The TAC states that “Defendants were unjustly enriched by payments, improvements, and Plaintiff’s business on the Property” and that it would be inequitable to allow them to retain those payments. Plaintiff also alleges that she paid over \$300,000 toward the purchase of the Property but that the Property was not transferred to her. She also alleges that she made improvements on the Property.

While certainly barebones, the allegations of unjust enrichment are sufficient to state a claim.

The demurrer as to the claim for unjust enrichment is **OVERRULED**. The demurrer to the cause of action for restitution is **SUSTAINED, without** leave to amend.

6. Slander of Title

“Slander or disparagement of title occurs when a person, without a privilege to do so, publishes a false statement that disparages title to property and causes the owner thereof “ ‘some special pecuniary loss or damage.’” (*Sumner Hill Homewoners’ Assn., Inc. v. Rio Mesa Holdings* (2012) 205 Cal.App.4th 999, 1030.) An essential element of slander of title is malice. (*Howard v. Schaniel* (1980) 113 Cal.App.3d 256, 263.)

² California courts are split as to whether unjust enrichment constitutes a separate cause of action, or whether it is simply a remedy like restitution. (*O’Grady v. Merchant Exchange Productions, Inc.* (2019) 41 Cal.App.5th 771, 791.)

The TAC states only:

Defendant made false statements regarding Plaintiff's ownership interest.

These statements have harmed Plaintiff's ability to secure her rights and damaged her business.

These bare allegations fail to state a claim for slander of title. Accordingly, the demurrer as to the cause of action for slander of title is **SUSTAINED**, with 15 calendar days leave to amend.

7. Elder Abuse

Plaintiff alleges that Defendants committed elder abuse against Penelope Webster, not against herself. Plaintiff does not have standing to bring an elder abuse claim on behalf of someone else. (*Ring v. Harmon* (2021), 72 Cal.App.5th 844, 851 ["an elder can bring an elder abuse claim on his or her own behalf, as can someone acting as the elder's representative (not the estate's)."])

Plaintiff does not allege that she is an elder nor that she was abused. She does not allege that she is the representative of Penelope. The Court does not believe there is any way for Plaintiff to amend her complaint to assert this cause of action.

Accordingly, the demurrer to the cause of action for elder abuse is **SUSTAINED, without** leave to amend.

8. Declaratory Relief

Pursuant to Code Civil Procedure section 1060:

Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property. . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties,

bring an original action or cross-complaint in the superior court for a declaration of his or her rights.

Defendants assert that Plaintiff cannot seek declaratory relief because she is already pursuing a cause of action for breach of contract. A court *may*, but is not obligated, to sustain a demurrer on a claim for declaratory judgment where there is an accrued breach of contract cause of action. (*Ossesous Technologies of America v, DiscoveryOrtho Partners, LLC* (2010) 191 Cal.App.4" 357, 366.) However, as there are disputes about the existence or terms of the contract in this case, and Plaintiff has sufficiently alleged that she is seeking to establish her rights and duties to the Property, she has sufficiently and appropriately stated a claim for declaratory relief.

The demurrer as to the cause of action for declaratory relief is **OVERRULED**.

9. Constructive Trust

A constructive trust may only be imposed where the following three conditions are satisfied: (1) the existence of a *res* (property or some interest in property); (2) the *right* of a complaining party to that res; and (3) some *wrongful* acquisition or detention of the res by another party who is not entitled to it. [citation]. (*Burlesci v. Petersen* (1975) 51 Cal.App.3d 590, 600.)

A constructive trust “ may be imposed in practically any case where there is a wrongful acquisition or detention of property to which another is entitled.” (*Ibid* [citation omitted].)

Although Plaintiff asserts this cause of action as against all Defendants, the only Defendant that is alleged to actually be retaining the Property is Penelope Webster. Accordingly, as to the other Defendants, there can be no claim for constructive trust. As to Penelope, the TAC fails to state how Penelope is wrongfully detaining the Property.

The demurrer as to the claim for constructive trust is **SUSTAINED**, with 15 calendar days leave to amend.

(The Court recognizes that Plaintiff has already made multiple attempts to amend her complaint, resulting in substantial additional work for both the court and Defendants. Plaintiff is placed on notice that the Court will likely deny allowing Plaintiff to make any future amendments beyond those specifically allowed in the above rulings.).

B. Motion to Strike

Defendants move to strike references to “malice, fraud, and oppression” in the third (fraud) and eighth (elder abuse) causes of action. Defendants also move to strike the request for relief for attorney’s fees and punitive damages.

The Court has already sustained the demurrer, without leave to amend, on the elder abuse cause of action. Thus the motion to strike as to that cause of action is **DENIED** as moot.

As to the claim for attorney’s fees, the Court **GRANTS** the motion to strike because Plaintiff has not cited to any contract provision or statutory provision that would allow her to seek attorney’s fees.

Punitive damages are recoverable where a plaintiff proves “by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code, § 3294.) Relevant to this case, “malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of rights or safety of others. (*Ibid.*) “Oppression” means conduct that subjects a person to “cruel and unjust hardship in conscious disregard of that persons’ rights.” (Civ. Code. §3294(c)(2).)

The proper standard for a motion to strike punitive damages is whether plaintiff has alleged “ultimate facts” showing an entitlement to exemplary damages. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) The TAC’s allegations have simply pleaded a claim for punitive damages in the language of the statute authorizing punitive damages. While this is not objectionable when sufficient facts are alleged to support the allegation, here the FAC lacks ultimate facts showing a punitive damages claim. (See *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6 [citation omitted].)

Moving Defendants’ motion to strike reference to punitive damages is **GRANTED**.

IV. Motions to Compel

Pennelope moves to compel initial responses to Special Interrogatories, Set One (“SROG”) and Request for Production of Documents, Set One (“RPD.”)

Pennelope served the SROG and RPD on May 20, 2025. (Declarations of Michael Fluetsch ("Fluetsch Decls.") ¶ 3, Exs. A.) Plaintiffs responses were due on June 23, 2025. (*Id.* ¶ 4.) Plaintiff has not responded and has not responded to Mr. Fleutsch's attempts to meet and confer. (*Id.* ¶ 5.)

Pursuant to Cal. Code Civ. Proc. § 2030.290, if a party to whom interrogatories are directed fails to serve a timely response then:

(a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Pursuant to Code Civ. Proc. section 2031.300, if a party to whom requests for production of documents fails to serve a timely response then:

(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240 and 2031.280.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

A party moving to compel initial responses under these sections is not required to meet and confer. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

Plaintiff has failed to respond to properly propounded discovery which is a misuse of the discovery process (Code Civ. Proc. § 2031.010(d)) and the Court has discretion to impose sanctions. (Code Civ. Proc. § 2023.030(a).)

The Motions to Compel are **GRANTED**. Plaintiff is to provide complete verified responses, without objection, to SROGs and RFPD, and produce all responsive documents, by 5:00 p.m. on September 19, 2025.

The Court is cognizant of Plaintiff's pro se status and declines to award mandatory sanctions under Code Civ. Proc. section 2023.050(e). However, the Court has previously admonished Plaintiff to comply with all meet and confer requirements and to avoid involving the Court in unnecessary motion practice. (July 11, 2025 Ruling.) Accordingly, the Court believes sanctions are appropriate in this case.

Counsel for Penelope seeks \$3,420.00 in attorney's fees for both motions as well as filing fees in the amount of \$120.00. (Fluetsch Decls. ¶18.) Mr. Fleutsch avers that he has a billing rate of \$550 and incurred four hours drafting the motions. As no opposition was filed, he did not incur further charges. The Court finds that \$550 is outside the reasonable rate charged in this jurisdiction and lowers the rate to \$350.00. The Court also finds that as the motions were nearly identical and quite brief, four hours is excessive and reduces time spent to two hours.

Accordingly, the Court **GRANTS sanctions** in the amount of \$700 and court filing fees in the amount of \$120.00; \$820 is to be paid by plaintiff to the Websters c/o their attorney, also by 5:00 p.m. on September 19, 2025.

The clerk shall provide notice of this ruling to the parties forthwith. Defendants Webster to prepare a formal Order(s) in compliance with Rule of Court 3.1312 in conformity with this Ruling.

10:00 a.m. Calendar

MATTER OF THE LORA J. OSTROM TRUST

25PR8868

**OBJECTOR’S MOTION TO SET ASIDE DEFAULT JUDGMENT
OR, IN THE ALTERNATIVE, A NEW TRIAL**

This is a probate matter brought by the Wendy Peeples aka Wendy J. Ostrom (“Petitioner”) as Petition for Instructions for Trustee Distribution and For Accounting and Compelling the Redress of Breach of Trust against the Successor Trustee Dawn J. Ostrom (“Objector.”) Now before the Court is the Trustee’s Motion to Set Aside Default.

I. Background

Petitioner filed her petition on March 17, 2025, and filed proof of service upon Ostrom on March 21, 2025. On May 14, 2025, a notice of the petition hearing set for June 6, 2025, was filed and served on Objector’s counsel, Claudia Shafer.

On June 6, 2025, the Court held the hearing on the petition. Objector was present but her counsel was not. During the hearing, the Court noted that Ostrom did not know where her attorney was and further that Ms. Shafer had a history of missed appearances. The Court further noted that Ms. Shafer had failed to file any written objections. Thereafter, the Court entered an Order granting the petition, removing Objector from her fiduciary duties, and charging costs and fees to Objector. Attorney Shafer was served with the Order by mail and e-mail on June 13, 2025.

Now before the Court are two motions filed by Petitioner: 1) motion for relief from judgment and, in the alternative, a 2) motion for a new trial.

II. Legal Standard

Pursuant to Code Civ. Procedure section 437(b), a judge must vacate a dismissal, default entry, or default judgment “whenever (1) an application is made no more than six